

New Jersey firearms qualification: the documentation checklist

What the Attorney General's standards require, written as a tick list for the file you would hand to a county prosecutor, an internal affairs investigator or a plaintiff's attorney. Every item that states a requirement cites the document and section it comes from. Items marked **good practice** are BrassOps' recommendations, not state requirements.

SOURCES CITED BELOW STANDARDS = *Semi-Annual Firearms Qualification and Requalification Standards for New Jersey Law Enforcement*, Office of the Attorney General, Division of Criminal Justice (issued December 1989; revised September 1990, April 1998, April 2001 and June 2003; the 2003 changes mandatory January 1, 2004). Part one covers handgun and shotgun; part two covers subgun, personal defense weapon, police service rifle, police carbine and scoped rifle. **1991 DIRECTIVE** = the Attorney General's directive adopting the Standards as agency policy, effective January 1, 1991. **LESS-LETHAL POLICY** = *Attorney General Policy on Less-Lethal Ammunition Directed Against Persons*, approved March 19, 2008. **2022 LIST** = *Attorney General's List of Approved Less-Lethal Ammunition and Conducted Energy Devices*, December 6, 2022.

(a) Courses, scores and frequency

- ☐ Two qualification sessions per calendar year, at least three months apart. Standards, Definitions, "Semi-Annual Qualification": "two prescribed qualification sessions within a 12-month period (a calendar year), with at least three months time between each qualification."
- ☐ Each cycle covers both day and night, under the supervision of a qualified supervising firearms instructor designated by the chief for that session. Standards, Section 5, Qualification: "Qualification and requalification is required both during daylight hours and under night firing conditions. All qualification sessions must be conducted under the supervision of a qualified supervising firearms instructor."
- ☐ Only the courses in the Standards count toward qualification; supplemental training is encouraged but is recorded as training, not qualification. Standards, Section 5, Courses of Fire.
- ☐ Handgun, day: HQC1 (Appendix A, 60 rounds, 25 yards) or HQC2 (Appendix B, 50 rounds, 25 yards), the agency's choice, minimum 80%, one firing. Standards, Definitions, "Qualification Score—Handgun"; Appendices A and B.
- ☐ Handgun, night: HNQC (Appendix C, 40 rounds, 15 yards), minimum 80%, with a handheld or gun-mounted light. The 2003 revision raised the night minimum from 70% to 80% and mandated the light. Standards, Definitions, "Qualification Score—Handgun Night Firing"; June 26, 2003 cover memo.
- ☐ Night firing conditions means low light, "either under natural subdued lighting or utilizing simulated subdued lighting"; indoor ranges may be used. Standards, Definitions, "Night Firing Conditions"; Section 5, Indoor Ranges.
- ☐ Shotgun: SQC and SNQC (Appendix D, 10 rounds of service load, 25 yards), minimum 80%, twice a year each, for officers who are or might be assigned the agency shotgun. Slug ammunition: SSQC day and night (Appendix D1), 80%, twice a year. Standards, Section 4; Appendices D and D1.
- ☐ Subgun and personal defense weapon: ASQC (Appendix E) and ASNQC (Appendix F, 50 rounds, 25 yards), 80%, twice a year each, plus quarterly live-fire training (see below). Standards part two, Section 4 and Section 5.
- ☐ Police service rifle: ARQC (Appendix G, 100 yards; 100 and 75 may be simulated at 50 with a reduced target, never at 25), 80%, twice a year; night qualification on the ASNQC twice a year when the rifle is deployed as a patrol supplement or for entries. Standards part two, Section 4; Qualification Matrix.
- ☐ Police carbine: PCQC (Appendix H, 60 rounds, 50 yards) and PCQNC (Appendix I, 40 rounds, 25 yards), 80%, twice a year each. No quarterly training requirement. Standards part two, Section 4; Appendices H and I.
- ☐ Scoped rifle (marksman): SRQC (Appendix J, 10 rounds, 100 yards), 90% including a mandatory first-round cold bore hit, four times a year with two months between sessions; the marksman may self-qualify with a qualified agency firearms instructor as observer. Standards part two, Definitions, "Quarterly Qualification"; Section 5.
- ☐ Quarterly training for subguns, personal defense weapons and police service rifles: four live-fire sessions a year, at least two months apart, at least 10 rounds each, under a qualified supervising assault-weapons instructor; two of the four may be the qualification sessions. Record each session, not only the two quals. Standards part two, Definitions, "Quarterly Training".
- ☐ Know which directive is in force. The statute requires an initial PTC-approved firearms course and then annual qualification (N.J.S.A. 2C:39-6j); the Standards require two sessions a year. The Attorney General adjusted the count for 2020 and 2021 by directive; check the current directive each year. 1991 Directive (quoting 2C:39-6j); Standards, Section 1.

(b) Who must qualify, and with which weapons

- ☐ Every officer, with every weapon carried on a regular basis for routine duty. Standards, May 21, 2001 memo: "Requalification will be required twice a year with any weapon carried on a regular basis as part of an officer's equipment for performance of routine official duties."
- ☐ Service handgun: HQC1 or HQC2 and HNQC, twice a year each. Standards, Section 4.
- ☐ Off-duty handgun that is substantially different in design, function or caliber from the service handgun (determined by the agency executive or supervising firearms instructor): HQC1 or HQC2 twice a year at 80% and HNQC twice a year at 80%. Standards, Section 4.
- ☐ Off-duty handgun that is not substantially different: a separate day or night qualification is at the discretion of the agency executive, but the handgun must be presented to the supervising firearms instructor for inspection during each qualification period. Record the determination and the inspection either way. Standards, Section 4; Section 5, Firearms.
- ☐ Shotgun, slug, subgun, rifle, carbine and scoped rifle: the course for the platform, for every officer "who is or might be assigned" its use. Officers authorized to carry an automatic or semi-automatic assault weapon are identified to the county prosecutor. Standards part two, Section 3.
- ☐ Before any firearm is fired, the supervising firearms instructor (or designee) inspects and approves it under agency standards; a copy of the approval record is kept on file. An unserviceable firearm is not used, and the supervising instructor files a report saying why and what was done. Standards, Section 5, Firearms.

- ☐ Qualification is fired with the agency-authorized belt, holster, magazines and loading devices, "indicated on the qualification record form and training schedule". Standards, Section 5, Equipment.
- ☐ An officer who does not pass shall not be permitted to carry firearms. 1991 Directive: "Those personnel who do not successfully qualify or requalify with firearms shall not be permitted to carry firearms."

(c) The Firearms Record for each officer

The Standards require an individual written Firearms Record for each participant, completed and maintained chronologically each time the officer qualifies or requalifies, kept as a normal business record, and reviewed by the chief or agency executive after every semi-annual requalification. Standards, Definitions, "Firearms Record"; Section 10. Each record shall include:

- ☐ Participant's name, the date and type of each qualification course completed, and the score on each. Standards, Section 10.
- ☐ The name of the supervising firearms instructor for each session or course. Standards, Section 10.
- ☐ Identification of every firearm used: make, model, caliber and serial number. Standards, Section 10; Section 7 (instructor ensures "the model and serial number of every weapon used" is recorded).
- ☐ A general description of the ammunition used: make, type, caliber; service load or equivalent load. Standards, Section 10; Definitions, "Ammunition".
- ☐ The location where the session was held (name of range). Standards, Section 10.
- ☐ For a non-qualifying officer, where the signed targets are stored (see d). Standards, Section 10.
- ☐ The calendar-year cycle the session counts toward (first or second; at least three months from the other) and, for long guns, which quarterly training session. Standards, Definitions.
- ☐ Day or night, and for a night course the light used (handheld or gun-mounted) and whether conditions were natural or simulated. Standards, Definitions, "Night Firing Conditions"; Appendix C.
- ☐ The passing standard applied and the result: qualified or non-qualifying. Standards, Definitions, "Non-Qualifying Participant".
- ☐ The firearm inspection and approval, and the equipment used. Standards, Section 5.
- ☐ **Good practice:** badge or ID number, rank, assignment, relay, time, weather, the revision of the Standards in force, the officer's acknowledgement, the scored target or a photograph of every target (required only for failures).
- ☐ **Good practice:** for an off-duty handgun, the written "substantially different" determination and who made it.

(d) When an officer fails

- ☐ Remedial instruction is required, given after the supervising firearms instructor analyzes the problems that may have led to the failure, including a check of the participant's firearm. Standards, Section 9: "A participant who fails to achieve a passing score on a prescribed qualification course shall receive remedial instruction."
- ☐ Document the time allotted and the method of remedial training, both set by the supervising firearms instructor, and who conducted it. Standards, Section 9; Section 7.
- ☐ Document every subsequent attempt to qualify after remediation, and its result. Standards, Section 9: "Document any subsequent attempts to qualify and the results of those attempts."
- ☐ Keep every target the officer fired on the initial and each subsequent attempt, signed by the officer and the firearms instructor, on file until the officer fires a qualifying score; the Firearms Record says where they are stored. Standards, Section 9; Section 7; Section 10.
- ☐ If the officer still does not pass after remediation and subsequent attempts, the supervising firearms instructor submits a comprehensive report to the chief; the chief decides the action; and the chief notifies the county prosecutor (or DCJ) in writing of a failure on the service weapon, and immediately on the failure itself. Keep the report and the notification in the file. Standards, Section 9; Section 3; Section 7.
- ☐ Record when the officer was disarmed and when carry authority was restored. The 1991 Directive bars carrying until the officer qualifies; the length of remediation and the handling of duty status are agency decisions, so cite your policy in the file. 1991 Directive; Standards, Section 3 ("action is to be determined by the agency chief executive").

(e) Instructor records

- ☐ For each firearms instructor, one of: Police Training Commission certification to instruct firearms in an approved Basic Course (N.J.A.C. 13:1-1.1); equivalent training with demonstrated knowledge and skill (FBI, U.S. Secret Service, FLETC, New Jersey State Police, Smith & Wesson Academy or NRA Police Firearms Instructor Program are named); or another recognized firearms instructor course accepted by the chief. Keep the certificate or the chief's written acceptance. Standards, Section 6.
- ☐ For each supervising firearms instructor: the above plus experience conducting a PTC-approved firearms course or equivalent, and the chief's designation for each session. Standards, Definitions, "Supervising Firearms Instructor"; Section 5.
- ☐ For subgun, personal defense weapon and service rifle sessions, the supervising instructor's Division of Criminal Justice assault-weapons instructor course or equivalent (DEA and NRA courses are named); for police carbine, a subgun, service rifle or carbine instructor course; for personal defense weapons, a subgun instructor course. Standards part two, Section 6; Qualification Matrix.
- ☐ A record linking every qualification session to the supervising firearms instructor who ran it, so the officer file and the instructor file agree. Standards, Section 10.
- ☐ **Good practice:** instructor certification dates and expiry, recertification history, the instructor-to-participant ratios used (the Standards recommend 1:6 handgun day, 1:3 handgun night, 1:1 shotgun, 1:4 assault weapons), and who was certified on the date of any session a court later asks about.

(f) Agency-level records the Standards require

- ☐ Annual report to the county prosecutor (or DCJ for certain state agencies) by January 15 of the following year: a description of agency-authorized firearms and ammunition; the training and qualification schedule with the dates and types of sessions held; the number who qualified and the number non-qualifying at each session, by course and weapon (service, off-duty, shotgun); and the number of personnel authorized and qualified to carry an assault weapon, police carbine or scoped rifle. Standards, Section 10; part two, Section 10.
- ☐ The training and qualification schedule itself, as part of the firearms records: personnel, dates and times of each session. Standards, Definitions, "Training/Qualification Schedule".
- ☐ Semi-annual use-of-force training for all personnel, including updates to statutes, court decisions and policy, and the semi-annual review of the agency's firearms policies (warning shots, moving vehicles, display of firearms, surrender of firearm, animals, on- and off-duty carry, alcohol and prescription drugs, covert operations, discharge reporting, authorized firearms, ammunition and leather gear). Keep the dates and attendance. Standards, Section 4.
- ☐ Less-lethal impact munitions: an officer may use them only with the chief's express written authorization, after a PTC-approved course, and must qualify and then requalify semi-annually in a PTC-approved course; the launcher is dedicated, clearly marked and never loaded with lethal rounds; only ammunition on the Attorney General's list may be deployed. Keep the authorization, the course record, each qualification and the approved-ammunition list in force. Less-Lethal Policy, Sections IV, VIII and IX; 2022 List.
- ☐ Conducted energy devices: only officers trained in the device may carry it, and only the models on the Attorney General's list (Axon X26, X2, TASER 7 as of December 2022), used under the Use of Force Policy. Keep the training record and the list in force. 2022 List; Attorney General Use of Force Policy, Addendum A.

(g) Retention and producing records

- ☐ Retention: the Standards call the Firearms Record a normal business record and the state records retention schedule for municipal police departments (Records Management Services, NJ Division of Revenue and Enterprise Services) sets the period. Confirm the series with your records custodian; do not destroy a qualification record without a signed disposal authorization. Standards, Section 10.
- ☐ OPRA: a training file is a government record. Know which parts your records custodian will release and which exemptions apply, and be able to produce the file within the statutory response time. Open Public Records Act, N.J.S.A. 47:1A-1 et seq.
- ☐ Subpoena or discovery: produce the complete chronological file, including every non-qualifying score, the signed targets, the remedial record and every subsequent attempt. A file with the failures removed is worse than a file with failures documented.
- ☐ Internal affairs or a use-of-force review: the file must answer, for the date in question, which weapon the officer was qualified with, on which course, day and night, with what ammunition, and under whose supervision.
- ☐ **Good practice:** an audit trail showing who created or changed each record and when, and a litigation hold procedure that freezes a file the moment an incident is reported.

HOW BRASSOPS KEEPS THIS FILE

BrassOps records every qualification against the officer, the weapon (make, model, caliber, serial number), the course, the score, the standard in force on that date, the ammunition lot, the lighting condition and the certified instructor who supervised it, and freezes that standard on the record so a later change to a course never rewrites an old verdict. Failures open a remedial case with the instructor's analysis, the remedial work and every subsequent attempt attached, and the activity log keeps a searchable audit trail of every change. One officer's complete file prints as a single records-request packet with a custodian certification, ready for OPRA, a subpoena or internal affairs.

Confirm against the current Attorney General directive; standards change.

General information, not legal advice. Quotations are from the documents named above as published by the Office of the Attorney General; the Standards were last revised in June 2003 and directives are issued from time to time, so read the current version before relying on this checklist.